there is a need to decriminalise it because of the cultural and medical issues involved. The NCB's stand is that it should be a graded response, where at least some case should be registered and there should be a system of graded warning rather than total decriminalisation. A roadmap should also be drawn, which could include setting up a pan-India rehabilitation network.

Q. What other big lessons does the Aryan Khan case hold for the NCB and other stakeholders?
There are lessons on either side, for both the consumers of drugs and for those looking into the so-called crime of drug consumption or peddling. For the first, I would say, there is a need for universal recognition by parents, teachers and guardians that drugs are more common than we care to admit. And it [the menace] is spreading at nautical speed. Parents across India may not be privy to what is happening to their children when it comes to drugs exposure and consumption. The worry is that we are now concocting drugs in India at unprecedented levels, including mixing synthetic drugs. When you have 80 to 100 million drug addicts or potential drug addicts, then we have a cancerous problem and must do something about it. The first step is at the societal level, to become aware of and recognise the problem.

Q. What changes do agencies like the NCB need to make in the way they handle such cases?
NDPS being a stringent act doubles our responsibility. Because you can incarcerate innocent people if your investigation is not professional. You could do serious damage to a lot of lives, as most of those arrested would be in their early 20s or 30s or even younger. So, we need to upgrade our investigation processes and rigour, otherwise we are doing a disservice to our own mandate and to society.

Q. Are state police organisations up to handling narcotics cases?
Narcotics investigation is not a priority for the state police as of now. They have enough excuses to say they don't have time enough from law and order and general crimes of murder and dacoity. It is high time that the state police mainstream the fight against narcotics because it is the mother of all crimes—the money comes from here, even trafficking in arms and humans is fed through the economics of drugs smuggling. I don't hesitate to say that the state police and the agencies dedicated to narcotics investigation are probably not trained well enough or adapt well enough to handle these cases professionally. And that is of serious concern. ■

to come and meet him as he had met parents of other accused too. So, after Khan Jr's meeting was over, Shah Rukh came to the guest house and told Singh how deeply concerned he was with his son's mental and emotional state. The younger Khan apparently wasn't sleeping too well and on many occasions Shah Rukh had to go to his bedroom and keep him company through the night. Shah Rukh also questioned the NCB's role in the whole affair and said his son was being vilified even though no evidence to substantiate the charge had been found. His eyes welling with tears, Shah Rukh told Singh, "We have been painted as some kind of big criminals or monsters who are out to destroy society and we find going to work tough every day." At the end of the conversation, he mentioned that it was his son's birthday. Singh apologised and said if he had known, he would have called him on another day. He even offered to get him a cake but Shah Rukh said there was no need and that Aryan was glad he got a patient hearing. "What better gift can one ask for in these times," he apparently told Singh.



"Would you press criminal action against someone who has chronic diabetes if he has an extra gulab jamun?"

DR ATUL AMBEKAR
Professor, NDDTC, AIIMS

THE UNRAVELLING

Singh and his team would then question all the other accused in the case, in addition to sitting with NCB's Mumbai team headed by Wankhede and going over all the evidence that had been collected. The pattern that emerged dismayed the SIT because, at every step, they found serious and inexplicable lapses that weakened the case considerably. The NCB team had found no drugs on Aryan's person when they searched him but they did find 6 gm of charas in the socks of Arbaaz Merchant, the friend with whom Khan was to share a room on the cruise. The NCB used the principle of conscious possession in the case, meaning that Khan was aware that Merchant was carrying charas and was therefore liable for prosecution.

However, the next day, Merchant categorically stated that the drugs were for his own consumption, that Aryan knew he occasionally smoked weed and had cautioned him against carrying the stuff on the cruise because "NCB officials have been active recently". The SIT also found several procedural lapses in the NCB team's investigation, notably that they did not seize the shoes and socks that Merchant had allegedly hidden the charas in. Nor did they get Aryan medically tested to check if he